BY ORDER OF THE COMMANDER THRID AIR FORCE

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Security

INSTALLATION SECURITY IN THE UNITED KINGDON (DEALING WITH INTRUDERS)

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements AFPD 31-12, *Integrated Defense*; AFI 31-117, and USAFE Supplement 1 to AFI 31-207, *Arming and Use of Force by Air Force Personnel*; AFMAN 31-222, *Air Force Use of Force Manual*; and AFMAN 31-201, Volume 4, *High Risk Response*. It reiterates the authority of the US Forces to police US occupied installations in the United Kingdom (UK). It establishes specific procedures for dealing with base intruders and details appropriate security force responses in restricted or controlled areas. This instruction reiterates options available to security forces (to include the rules on the use of force) consistent with the applicable AFIs. It establishes requisite security force training to include UK sensitivity training. It explains the concept of joint US/UK policing and outlines our mutual objectives for ensuring maximum force protection with enhanced law enforcement activity. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with AFMAN 33-363, *Management of Records*, and disposed of in accordance with the *Air Force Records Disposition Schedule (RDS).* Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, Recommendation for Change of Publication; route AF Forms 847 from the field through the appropriate functional chain of command. This publication may be supplemented, but all direct Supplements must be routed to the OPR of this publication for coordination prior to certification and approval. The authorities to waive requirements in this publication are identified with a Tier number (T-0, T-1, T-2, T-3) following the compliance statement. See AFI 33-360, Publications and Forms Management, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items.

SUMMARY OF CHANGES

This interim change revises 3AFI31-209 by (1) incorporating the waiver authority statement in the opening paragraph, (2) add required tier numbers in the text of the document. Revisions are indicated by a vertical bar (|) in the left margin.

1. Purpose

1.1. Security forces must understand the full range of options available to them when responding to security incidents. This is vital in a heightened security environment, when risks associated with normal protestor activity are significantly increased because of legitimate terrorist concerns. Procedures must minimize intrusions onto installations in order to adequately protect US personnel and assets.

1.2. This instruction establishes procedures to maintain the requisite physical security of the installation commensurate with USAF force protection standards. In addition, it addresses the need for joint US-UK policing to maximize physical security and respond to criminal activity in accordance with the UK criminal justice system. While this instruction consolidates a number of security AFIs, it also establishes UK-specific policy to meet both our force protection and law enforcement objectives.

2. Legal Authority

2.1. The NATO SOFA, Article VII, paragraph 10a, authorizes USAF Security Forces to police USAF occupied installations in the UK. Security Forces personnel may take all appropriate measures to ensure the maintenance of good order and security on USAF occupied bases.

2.2. USAF Security Forces are authorized to protect US facilities, property and personnel and may take necessary lawful measures to do so. Security Forces personnel must follow applicable DoD and Combatant Commander directives, regulations and USAF instructions when carrying out their security responsibilities.

2.3. Rules for Courts-Martial 302c and Article 7b contained in the Manual for Courts-Martial, give Security Forces the authority to apprehend any persons subject to the UCMJ suspected of having committed an offense. Title 18 and the US Constitution authorize the detention of US civilians for offenses committed on a military installation or property under the control of the armed services.

2.4. UK or third-country national civilians are not subject to the UCMJ or US law and must therefore be turned over to UK police authorities, as soon as practicable, if they are detained on suspicion of committing a crime or posing a risk to the security of the installation.

3. Considerations to Assist UK Authorities

3.1. Intruders entering USAF occupied installations are likely to have committed criminal offenses under UK law and care should be taken to ensure evidence is secured for possible use in subsequent criminal proceedings.

3.1.1. Depending on the circumstances, intruders could be arrested and charged with, but not limited to the following: terrorist offenses; weapons related offenses; equipped to commit a crime; criminal damage; aggravated trespass; obstructing a public highway;

obstructing a police officer in the performance of his duties; public disorder, breach of the peace offenses, etc.

3.1.2. Aggravated Trespass: While simple trespass is not a criminal offense in the UK, persons who trespass on land in open air and disrupts, obstructs, or intimidates a lawful activity may be committing the criminal offense of “aggravated trespass”.

3.1.2.1. One "lawful activity" that will likely be disrupted by any intrusion is the security function of the installation.

3.2. Security Force and other US personnel responding to intruder activity should be prepared to provide statements to UK police authorities as to their involvement in responding to the intrusion. Both SF and MDP who were involved in the security operation, should note the disruption to security caused by the intrusion.

3.3. Specific actions must be implemented to ensure the security of the installation and protect personnel from harm and should be included in installations standard operating procedures.

3.3.1. Close installation entry and exit gates as soon as possible upon notification of intrusion activity.

3.3.2. Cordon off and evacuate effected areas.

3.3.3. Conduct a search of the effected areas to ensure all intruders are detained and any devices or other evidence is found.

3.4. SF personnel involved must document any disruption caused by gate closures, cordons, evacuations and other security measures that had to be implemented because of the intrusion.

3.5. Persons suspected of committing aggravated trespass can be "warned off" land for up to three months. The warning off must be accomplished by the senior UK police officer present at the scene.

3.5.1. Having been warned off for aggravated trespass, any return within three months is an offense and, under this circumstance, there is no need to show disruption or obstruction of lawful activities.

3.6. Wings will develop checklists that will assist the Security Forces in showing the disruption to operations. The following types of information should be included in the checklist (an AF Form 2519, All Purpose Checklist may be used): number of intruders, time of intrusion, MDP notifications, gate closures, cordons established, area searches conducted, intruders detained, personnel searches conducted and times of every detail to be able to document the entire disruption down to the last minute.

4. Policy for Dealing With Intruders

4.1. Anyone who enters an installation without authorization or for a purpose contrary to the best interests of the United States may be an “intruder”. USAF Security Forces personnel shall determine when a person is intruding on an installation. Intruders shall be intercepted, detained and removed. In the absence of UK police officers or in situations where UK police officers are overwhelmed or unable to intercept intruders, US Security Forces personnel may detain and hold intruders until such time as it is safe and reasonably practicable to hand them over to UK police authorities.

4.2. The actions of USAF Security Forces personnel in response to intruder activity must support both USAF security requirements and law enforcement objectives. Intruders, both those who are citizens of the UK and those who are citizens of a third country, who are suspected of committing a crime will be subject to trial before the UK courts for their actions. Accordingly, while USAF installation security remains paramount, procedures should, where possible, be followed to support UK authorities responsible for the prosecution.

4.3. Security Forces personnel are authorized to use force to detain intruders in accordance with DoD and Air Force directives. Security Forces personnel must comply with AFI 31-207 and USAFE Sup1 *Arming and Use of Force By Air Force Personnel;* AFMAN 31-222, *Security Forces Use of Force Manual;* and local operating instructions concerning the use of force.

4.4. Security Forces personnel are subject to the UCMJ and will be held accountable under US military law for criminal offenses or regulatory violations they may commit.

4.4.1. In accordance with Article VII of the NATO Status of Forces Agreement, US military officials will make the final determination as to whether an act or omission arising out of the performance of official duties constitutes an offense actionable under US law and the UCMJ. Accordingly, US military authorities will investigate and address allegations of criminal offenses committed by US Security Forces personnel. Upon notification of any allegations of criminal activity or other misconduct committed by US Security Forces personnel, the matter should be referred to the base legal office as soon as possible.

5. General Procedures for Dealing With Intruders

5.1. Upon notification of intruder activity USAF Security Forces personnel will: **(T-1)**

5.1.1. Detain intruders if MDP personnel are not on scene (or are otherwise unavailable) or are incapable of controlling the incident.

5.1.2. Contact the MDP immediately.

5.1.3. Permit MDP officers to control any intruder incident, providing MDP personnel are both on scene and capable of controlling the incident.

5.1.4. Permit MDP to assume control of any detained intruder as soon as reasonably practical.

5.1.5. Provide additional assistance to MDP upon their request.

5.1.6. In circumstances where the MDP are not available to respond to any reported incident, contact the local county police and follow the procedures referred to in this Instruction substituting the county police for the MDP.

6. Direct Contact With Intruders

6.1. It may become necessary to interact directly with intruders. If so, the following rules apply:

6.1.1. Within the confines of US forces occupied installations, US security personnel may engage in the use of force in strict accordance with and following the principles and

procedures outlined in AFI 31-207 and USAFE Sup1, *Arming and Use of Force by Air Force Personnel*.

6.2. Use only that force reasonably necessary to reach your objective, as follows:

6.2.1. In self-defense and, or, defense of others;

6.2.2. To prevent further intrusions onto the installation;

6.2.3. To prevent criminal damage or threats to security (facilities and personnel), or in the interest of public safety;

6.2.4. To detain intruders until such time as it is safe and reasonably practicable to hand over to MDP;

6.2.5. To move intruders as necessitated by security, mission, safety or emergency concerns;

6.2.6. To transport any intruders who need to be moved to the nearest safe location for transfer to MDP;

6.2.7. To handcuff intruders. (AFMAN 31-222, chapter 9)

6.3. In all cases, once a particular level of force is no longer required, you must discontinue its use.

7. Direct Contact With Intruders (Non-Security Forces Personnel)

7.1. All Air Force members must shoulder their share of security responsibility.

7.2. In all circumstances where force is used, personnel will only use the minimum amount of force to complete the task.

8. Detaining Intruders

8.1. When necessary to detain intruders, follow standard procedures for conducting searches for weapons or criminal evidence that the individual could remove or destroy.

8.2. Use of force, to include physical restraint, may become necessary to detain intruders. Security Forces personnel should take care to use the minimum physical force necessary, and then, only when other forms of restraint are not effective.

8.3. Intruders should be handed over to MDP as soon as it is safe and reasonably practical to do so.

8.4. If a protest is anticipated, security personnel should coordinate with MDP and identify a suitable holding facility to detain intruders in the event there are a number of incursions.

8.5. Intermediate level use of force may also be used to detain intruders if that level of force is reasonably necessary under the circumstances to carry out assigned responsibilities. Intermediate level force such as chemical irritant, riot control agents, police and riot batons, military working dogs, etc, must be used in accordance with AFI 31-207, USAFE Sup1 and AFMAN 31-201V2.

8.6. Use of deadly force is only authorized as a last resort and in strict accordance with AFI and USAFE Sup 1 31-207.

9. Use of Handcuffs

9.1. Handcuffing is a use of force. Handcuffs should be used only if necessary and when circumstances warrant their use for the protection of resources, the general public, Security Forces personnel, the intruders themselves, or to prevent Security Forces personnel from losing control of a situation.

9.2. When applying handcuffs, first inform detainees of the handcuffing procedure and give them the opportunity to cooperate.

9.3. When applying handcuffs, use only such force necessary to achieve control of a resisting detainee.

10. Search Procedures

10.1. On-base: US Security Forces search detained non-US nationals if the circumstances warrant a search. However, if possible, allow the search of non-US nationals to be conducted by the MDP. **(T-1)**

10.2. A search is authorized to protect life, property or to prevent the loss or destruction of evidence.

10.3. Detained non-US nationals may be searched for the possession of any weapons or any harmful devices they may be carrying on their person.

10.4. Search procedures for female detainees:

10.4.1. Female security forces or other female military personnel should conduct the search.

10.4.2. If an urgent safety or security need exists, two Security Force personnel must be present to witness a search conducted by the opposite sex.

10.5. Security Forces personnel may search detained non-US nationals' parcels, hand-baggage or vehicles in accordance with standard search procedures. However, if possible, allow this search to be conducted by MDP.

10.5.1. Do not allow detained personnel access to hand-baggage or parcels.

10.6. Use standard search and "stop and frisk" procedures in accordance with AFMAN 31-222, Chapter 8, AFMAN 31-201V2, Chapter 1, and local operating instructions.

10.7. Off-base: All off-base policing activities (that includes searches and frisks of non-US nationals) require the coordination and approval of UK police authorities. **(T-1)**

10.7.1. Coordinate all off-base policing activity with the staff judge advocate prior to conducting the activity.

11. Transporting Detained Persons

11.1. Search all detained intruders prior to transporting them in a Security Forces vehicle and follow procedures contained in Chapter 9, AFMAN 31-222, *Security Forces Use of Force* Manual and AFMAN 31- 201V2, Legal *Considerations*.

11.2. Handcuff detainees prior to transport and always use installed seatbelts.

11.3. When transporting a detainee of the opposite sex, you should ask another security forces member or an NCO of the same gender as the detainee to accompany you. If a same gender SF member or other NCO is not available, notify the control center of your location, approximate distance to the designated location, odometer reading, and departure time. Upon arrival at the designated location, notify the controller of the arrival time and odometer reading.

12. Procedures in Restricted, Controlled Areas

12.1. Security Forces will intercept and detain intruders in restricted and controlled areas as soon as possible and transport them to a safe location outside the restricted or controlled area for transfer to MDP.

13. Unauthorized Vehicle Entry onto Installation

13.1. Vehicle intrusions should be dealt with first by preventing access to resources, then by blocking further movement of the vehicle and occupants.

13.2. If a vehicle enters a restricted or controlled area and the occupants do not voluntarily exit the vehicle, it may be necessary to use force to enter the vehicle and remove the occupants. Occupants will be warned prior to forcibly entering the vehicle.

13.3. The vehicle will be towed or otherwise removed from the restricted or controlled area as soon as it is safe and practicable.

14. Security Forces Training (UK)

14.1. Security Forces and security augmentees will receive initial training on local jurisdiction, rules of engagement, use of force and handling of trespassers. Recurring, local training on UK police procedure and sensitivities is also required.

MICHAEL W.WOOLEY, Major General, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

NATO Status of Forces Agreement, 1951

UK Visiting Forces Act, 1952

DoDI 2000.16, *DoD Antiterrorism Standards*

DoD 0-2000.12-H, *Protection of DoD Personnel and Activities Against Act of Terrorism and Political Turbulence*

AFI 31-207 and USAFE Supplement 1, *Arming and Use of Force By Air Force Personnel*

AFMAN 31-201, Volume 2, *Security (Legal Considerations)*

AFMAN 31-222, *Security Forces Use of Force Manual*

AFJI 31-102, *Physical Security*

AFMAN 31-201, Volume 4, *High-Risk Response*

AFPD 31-3, *Air Base Defense*

Abbreviations and Acronyms

AFI—Air Force Instruction

AFMAN—Air Force Manual

DoD—Department of Defense

MDP—Ministry of Defence Police

NATO—North Atlantic Treaty Organization

SOFA—Status of Forces Agreement

UCMJ—Uniform Code of Military Justice

UK—United Kingdom

US—United States

USAF—United States Air Force

USAFE—United States Air Forces Europe

USC—United States Code